

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 1 of 35
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Request for Quote (RFQ) 140D0426Q0234
Biomedical Engineering / Maintenance and Repair Services
Combined synopsis solicitation for combined synopsis/solicitation for commercial items

SECTION I

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a separate written solicitation will not be issued. This solicitation document incorporates provisions and clauses are those in effect through Federal Acquisition Circular 2025-06.

1.1 General

This requirement is being issued by the Department of the Interior (DOI)/Interior Business Center, Acquisition Services Directorate (AQD), under the franchise authority, on behalf of the Armed Forces Retirement Home – Gulfport, MS (AFRH-G).

AQD is issuing this Request for Quote (RFQ) for the purpose of entering into a contract using Part 12, 13, and 19.5 of the Federal Acquisition Regulation (FAR).

1.2 Notice of Small Business Set-Aside

In accordance with FAR 52.219-6, this is a notice that this RFQ is a total set-aside for small business concerns. Only quotes submitted by small business concerns will be accepted by the Government. Any quote submitted by a contractor that is not a small business will not be considered for award.

1.3 Submission of Questions

Questions related to this RFQ package must be an electronic copy in Excel (B08 SOL, Attachment 4 Q&A Spreadsheet) submitted no later than **12:00 P.M. current Eastern Time, March 27, 2026** to Nicole Johnson at nicole_johnson@ibc.doi.gov and Rebecca Fentzke at rebecca_fentzke@ibc.doi.gov. Any questions received after the previously specified cut-off date and time may not be accepted or answered. Phone calls will not be accepted. Questions with the Government's responses will be posted on System for Award Management (www.sam.gov) via amendment to this RFQ. Please be advised that the Government reserves the right to transmit questions and answers of a common interest to all prospective Contractors. All e-mail inquiries must have "Question(s) – RFP # **140D0426Q0234**" included in the subject line.

1.4 Quote Due Date

Quotes submitted in response to this RFQ shall be received no later than **12:00 P.M. Eastern Time, April 3, 2026**, in order to be considered for award. Quotes must be submitted electronically

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 2 of 35
---	--	---------------------

via email to Nicole Johnson at nicole_johnson@ibc.doi.gov and Rebecca Fentzke at rebecca_fentzke@ibc.doi.gov, and the subject line must include the request for quote number **140D0426Q0234**. See section 4 for submission instructions.

NOTE: Due to the email server, please limit the size of each email with attachments to **15MB**; use separate emails when emailing quotations, if necessary.

1.5 Anticipated Award Type

The Government anticipates the award of a Firm-Fixed-Price (FFP) type contract.

1.6 Place of Performance

Services will be provided at the Armed Forces Retirement Home, Gulfport Campus.

1.7 Federal Holidays

All federal Government holidays observed can be found on the OPM, Pay and Leave site at the following address: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/> Additionally, the Government may recognize any other day designated by Federal Statute, Executive Order, and/or Presidential Proclamation.

1.8 Administrative Points of Contacts

Contracting Officer (CO):

Nicole Johnson
Acquisition Services Directorate
Interior Business Center
U.S. Department of the Interior
Email: nicole_johnson@ibc.doi.gov

Contracting Officer's Representative (COR):

Emanuel Toledo
Contract Surveillance Representative
Armed Forces Retirement Home
1800 Beach Drive
Gulfport, MS. 39507

1.9 Contract Line-Item Number (CLIN)

See B08 SOL, Attachment 1 Pricing Template

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Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 3 of 35
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SECTION 2

2.1 Performance Work Statement (PWS)

Biomedical Engineering / Maintenance and Repair Services Armed Forces Retirement Home – Gulfport, MS (AFRH-G)

Background. The Armed Forces Retirement Home (AFRH-G) is a Continuing Care Retirement Community (CCRC), dating back to 1851 when it was established as the United States Soldiers Home. In 1991, the AFRH-G became an independent Federal agency and is the only agency that does not receive appropriate (taxpayer) funds for its operation. The Agency's income flows from enlisted men and women serving in the U.S. Armed Forces and in a trust fund that has operated since the Home's beginning.

There are two Campuses that make up the Armed Forces Retirement Home. One is located in our nation's capital of Washington D.C., and the other is located along the scenic coast of Gulfport, Mississippi. Both campuses have the high honor of providing exceptional care to our Nations' retired defenders. The total max population at the Gulfport Campus is 594, this includes a mixture of independent living, assisted living, memory support and long-term care for our residents.

Scope

The contractor shall provide all personnel, management, supervision, tools, equipment, materials, transportation, and services necessary to perform preventive, corrective, and emergency maintenance on government-owned medical and dental equipment at the Armed Forces Retirement Home, Gulfport Campus (AFRH-G). Services provided shall ensure all equipment is safe, functional, and in compliance with manufacturer specifications, Joint Commission standards, CARF, OSHA, NFPA, EPA, and other applicable federal regulations.

General Information

- The contractor shall maintain all equipment in a safe, efficient, and fully operational condition.
- All services shall comply with original equipment manufacturer (OEM) recommendations and applicable regulatory requirements.
- The contractor shall maintain appropriate records of all maintenance actions, inspections, and repairs performed under this contract.

Contractor Personnel

- The contractor shall provide personnel with the qualifications, licenses, and certifications necessary to perform biomedical equipment maintenance.
- Contractor staff shall have verifiable training and experience with the equipment to be serviced.

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 4 of 35
---	--	---------------------

- Personnel shall wear appropriate identification and comply with AFRH-G security, safety, and infection control policies.

Required Qualifications & Certifications

- BMET formal training (military or accredited college)
- Strongly recommended: CBET certification
- OEM-specific training for every major category of equipment
- Training in NFPA 99, OSHA safety, EPA disposal, infection control

Required Verifiable Experience

- Proven /similar experience maintaining AEDs (Heartsine models)
- Experience /similar with dental operator systems, panoramic X-ray, sterilizers
- Experience /similar with electric beds (Joerns/Hill-Rom) and patient lifts
- Experience /similar with PT/rehab equipment (NuStep, Biodex, Chattanooga, etc.)
- Experience /similar with vital signs monitors, thermometers, EKGs
- Documented PM, calibration, corrective and emergency repairs
- Ability to meet Joint Commission and CARF documentation standards

Specific Requirements

Automated External Defibrillators (AEDs) See B08 SOL, attachment 3

- Conduct annual inspections of all AEDs located at AFRH-G.
- Replace any AED that is damaged or malfunctioning with the same model or an equal replacement of equal or greater quality.
- Replace expired batteries with the same brand or an equal replacement.
- Provide an inspection report after each annual inspection, documenting the condition of each AED, actions taken, and any replacements made.
- Maintain a maintenance log of battery and AED replacements, submitting a copy to the Contracting Officer's Representative (COR) within five (5) business days of service.

Preventive Maintenance See B08 SOL, attachment 2

- Perform scheduled preventive maintenance (PM) on medical and dental equipment in accordance with OEM standards.
- PM shall include calibration, functional testing, safety testing, cleaning, and adjustments.
- PM schedules shall be coordinated with the COR to minimize disruption to operations.

Corrective and Emergency Maintenance

- Respond to service calls for equipment failures or malfunctions within the timeframe specified by the contract.

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 5 of 35
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- Provide corrective maintenance, including parts replacement, adjustments, and repairs, to restore equipment to OEM standards.
- Emergency repairs shall take priority over routine maintenance.

Government Furnished Information

- A list of equipment covered under this contract, including AEDs, will be provided in B08 SOL, Attachment 2 and B08 SOL, Attachment 3.
- The Government will provide access to facilities and equipment as required for contract performance.
- The Government reserves the right to add new equipment **or** replace damaged equipment listed in SOL, Attachment 2 and B08 SOL, Attachment 3 with equivalent equipment during the performance of this contract.

Quality Assurance

- Contractor performance will be evaluated in accordance with the Quality Assurance Surveillance Plan (QASP).
- Government surveillance may include random sampling, 100% inspection, and customer complaints.
- The contractor shall implement internal quality controls to ensure compliance with the PWS.

Performance Requirements Summary (PRS)

Performance Objective	Standard	Acceptable Quality Level (AQL)	Surveillance Method
Annual AED Inspections	100% of AEDs inspected annually; deficiencies corrected	100% compliance	100% inspection of reports
Preventive Maintenance	PM completed per OEM schedule	95% on-time completion	Random sampling; report review
Corrective Maintenance	Equipment restored to service per OEM specs	95% first-time repair rate	Random sampling; service call logs
Emergency Maintenance Response	Respond within contract timeframe	95% compliance	Random sampling; time logs
Documentation	Reports and logs submitted within 5 business days	100% compliance	100% inspection of records

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Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 6 of 35
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SECTION 3

TERMS AND CONDITIONS

3.1 Electronic Invoicing and Payment Requirements – Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's IPP.

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions – Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. Contractor Name
2. Contractor Address
3. Order No.
4. Invoice date and number
5. Billing period for services performed
6. Description of deliverable
7. Price of deliverable
8. Date deliverable was provided to the Government for inspection
9. Date deliverable was approved and accepted by the Government
10. Travel – All receipts that clearly document billed costs

Failure to comply with required invoice documentation will result in invoice rejection.

The Contractor must use the IPP website to register, access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 – 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its quote or quotation.

(End of Local Clause)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 7 of 35
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3.2 Final Invoice Closeout of the Contract:

- a. The contractor shall submit a final invoice, designated as such by a clear statement of “FINAL INVOICE” on the face of the invoice document.
- b. The contractor shall provide a certificate of completion that certifies all services have been provided as required by the contract.

(End of Local Clause)

3.2 CLAUSES UNDER THE FEDERAL ACQUISITION REGULATION (FAR)

FAR 52.252-2 – Clauses Incorporated by Reference (FEB 1998)

This contract incorporates the following FAR clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at <https://www.acquisition.gov/far/part-52>.

The following clauses are incorporated by reference:

FAR Clause	Provision Title	Clause Date
52.202-1	Definitions.	Jun 2020
52.203-3	Gratuities.	Apr 1984
52.204-13	System for Award Management Maintenance.	Oct 2018
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020
52.203-16	Preventing Personal Conflicts of Interest.	Jun-2020
52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services (Deviation Feb 2025)	Nov 2023
52.232-1	Payments.	Apr 1984
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013
52.242-15		

FAR CLAUSES INCORPORATED IN FULL TEXT

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services. (Mar 2026) (Deviation 2025-O0004)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 8 of 35
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As prescribed in [12.301](#)(b)(4), insert the following clause:

Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Mar 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

(6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X__ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).

__ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

__ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

__ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101](#) note).

__ (6) [Reserved].

__ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

__ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X__ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

__ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 9 of 35
---	--	---------------------

X (11) (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

__ (ii) Alternate I (Dec 2023) of [52.204-30](#).

X (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).

X (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).

__ (14) [Reserved].

__ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022)

([15 U.S.C. 657a](#)).

__ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

__ (17) [Reserved]

X (18) (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of [52.219-6](#).

__ (19) (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of [52.219-7](#).

X (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).

__ (21)(i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).

__ (ii) Alternate I (Nov 2016) of [52.219-9](#).

__ (iii) Alternate II (Nov 2016) of [52.219-9](#).

__ (iv) Alternate III (Jun 2020) of [52.219-9](#).

__ (v) Alternate IV (Jan 2025) of [52.219-9](#).

__ (22)(i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

__ (ii) Alternate I (Mar 2020) of [52.219-13](#).

__ (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

__ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

__ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

X (26)(i) [52.219-28](#), Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

__ (ii) Alternate I (Mar 2020) of [52.219-28](#).

__ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

__ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

__ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644](#)(r)).

__ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637](#)(a)(17)).

X (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O. 11755).

__ (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Mar 2026)([E.O.](#)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 10 of 35
---	--	----------------------

[13126](#)).

__ (33) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

__ (34)(i) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

__ (ii) Alternate I (Feb 1999) of [52.222-26](#).

X__ (35)(i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).

__ (ii) Alternate I (Jul 2014) of [52.222-35](#).

__ (36)(i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).

__ (ii) Alternate I (Jul 2014) of [52.222-36](#).

X__ (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).

X__ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X__ (39)(i) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

__ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

__ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)

__ (41)

(i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

__ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

__ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

__ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

__ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

__ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

X__ (46) [52.223-23](#), Sustainable Products and Services (May 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)).

__ (47)(i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).

__ (ii) Alternate I (Jan 2017) of [52.224-3](#).

__ (48)(i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

__ (ii) Alternate I (Oct 2022) of [52.225-1](#).

__ (49)(i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301](#) note, [19 U.S.C. 2112](#) note, [19 U.S.C. 3805](#) note, [19 U.S.C. 4001](#) note, [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

__ (ii) Alternate I [Reserved].

__ (iii) Alternate II (Jan 2025) of [52.225-3](#).

__ (iv) Alternate III (Feb 2024) of [52.225-3](#).

__ (v) Alternate IV (Oct 2022) of [52.225-3](#).

__ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).

X__ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations,

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 11 of 35
--	---	---------------

and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

__ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

__ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

__ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X__ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).

__ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).

__ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

__ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

X__ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).

__ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).

__ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).

__ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

__ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

__ (65)(i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).

__ (ii) Alternate I (Apr 2003) of [52.247-64](#).

__ (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

X (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter67).

Wage Determination: No: 2015-5147 Revision Number: 28 Date of Last Revision: 12/3/2025

X (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X__ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and 41 U.S.C. chapter 67).

__ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 12 of 35
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(41 U.S.C. chapter 67).

__ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

X__ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

X__ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

__ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

__ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 13 of 35
---	--	----------------------

R of Pub. L. 117-328).

(vii)

(A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115–390](#), title II).

(B) Alternate I (Dec 2023) of 52.204–30.

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(x) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(xvi)

(A) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (Jan 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46](#)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 14 of 35
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[U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Alternate I (Feb 2000). As prescribed in [12.301](#) (b)(4)(i), delete paragraph (d) from the basic clause, redesignate paragraph (e) as paragraph (d), and revise the reference to "paragraphs (a), (b), (c), or (d) of this clause" in the redesignated paragraph (d) to read "paragraphs (a), (b), and (c) of this clause".

Alternate II (Oct 2025). As prescribed in [12.301](#) (b)(4)(ii), substitute the following paragraphs (d)(1) and (e)(1) for paragraphs (d)(1) and (e)(1) of the basic clause as follows:

(d)(1) The Comptroller General of the United States, an appropriate Inspector General appointed under section 3 or 8 G of the Inspector General Act of 1978 ([5 U.S.C. App.](#)), or an authorized representative of either of the foregoing officials shall have access to and right to—

(i) Examine any of the Contractor's or any subcontractors' records that pertain to, and involve transactions relating to, this contract; and

(ii) Interview any officer or employee regarding such transactions.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), and (c), of this clause, the Contractor is not required to flow down any FAR clause in a subcontract for commercial products or commercial services, other than—

(i) *Paragraph (d) of this clause*. This paragraph flows down to all subcontracts, except the authority of the Inspector General under paragraph (d)(1)(ii) does not flow down; and

(ii) *Those clauses listed in this paragraph (e)(1)*. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(A) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(B) [52.203-15](#), Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5).

(C) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(D) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(E) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(F) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(G) (*I*) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders— Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

(2) Alternate I (Dec 2023) [52.204-30](#).

(H) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\) and \(3\)](#)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(I) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(J) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

(K) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 15 of 35
--	---	---------------

(L) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(M) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(N) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(O) ___ (I) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

___ (2) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(P) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

(Q) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

(R) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)).

(S) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(T) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(U) ___ (I) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

___ (2) Alternate I (Jan 2017) of [52.224-3](#).

(V) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(W) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations. (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(X) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(Y) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(Z) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

52.217-8 Option to Extend Services. (Nov-1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the period of performance of the order.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar-2000)

(a) The Government may extend the term of this contract by written notice to the Contractor any time before the end of the period of performance; provided that the Government gives

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 16 of 35
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the Contractor a preliminary written notice of its intent any time before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

SECTION 4 INSTRUCTIONS TO OFFERORS AND PROVISIONS

4.1 Submission Requirements

Contractors are required to submit the following documents: a written **Technical and Price Quote** to Government officials for the purposes of assuring that the prospective contractor is fully cognizant of the scope of this contract and has the capability to complete all requirements of the PWS.

The quote **MUST** cite the appropriate Unique Entity Identifier number (UEI). Contractors are required to be registered in the System for Award Management (SAM.Gov) by the date of quote submission.

4.2 Format for Quote

The contractor shall submit an electronic copy of their quote containing the following:

- Volume I –Technical
 - Factor 1 - Technical Approach
- Volume II – Price
 - Factor 2 - Price

The cover page must cite the following:

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 17 of 35
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1. Name and Address of Contractor;
2. Corresponding solicitation number and acknowledgement of amendments;
3. Unique Entity Identifier Number (UEI);
4. NAICS: 811210 Electronic and Precision Equipment Repair and Maintenance
5. Product Service Code (PSC) for this requirement is anticipated to be J065 – Medical, dental, and veterinary equipment
6. Indicate specific time period quote is valid. i.e., 60 days, etc.

4.3 Submissions

Technical Submission – Volume I: Technical quotes are limited to twenty (15) pages, on standard letter-size paper (8.5x11 inch) single spaced. Any pages in excess of the twenty (15) page limit will not be evaluated. All pages shall have a minimum of a 1-inch margin on the top, bottom, left, and right. Page numbering, Contractor identification, and disclaimers may be placed in the 1-inch margin. Font size shall be no smaller than 12-point. The Government will not count the following documents toward the 15-page limit:

- Charts, tables, and graphs (when on separate pages);
- Letter of Transmittal (cover letter);
- Title Pages;
- Divider Pages;
- Table of contents;
- List of Exhibits;

The Contractor shall provide a technical quote that addresses the following:

VOLUME 1: TECHNICAL QUOTE INSTRUCTIONS

The technical volume shall address topics and requirements specified in the PWS as instructed below.

VOLUME 1: Technical Quote shall provide a complete response to the following technical element:

Factor 1: Technical Approach

The offerors written technical approach shall demonstrate a thorough understanding of what is required and the work to be performed as stated in the PWS and B08 SOL, Attachment 2 Equipment Inventory and B08 SOL, Attachment 3 AED Inventory. This includes the Offerors approach to successfully accomplish all requirements within the PWS/PRS.

VOLUME II –

Factor 2: Price

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 18 of 35
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The Price Volume shall be submitted separately from Volume I – Technical Quotes.

NOTE: To ensure the Government receives the highest quality solution at the most competitive price, offerors are strongly encouraged to propose discounts for this requirement.

General Requirements:

Pricing Template

The offeror shall complete and submit B08 SOL, Attachment1 Pricing Template, as part of the price quote for the base year and all options.

- The template must be submitted in Excel format to allow the Government to verify quoted amounts.
- Each dollar amount within the Pricing Template shall be rounded to two (2) decimal places.

Quote Validity

Quotes shall include a statement confirming that the offeror's quote is valid for a minimum of ninety (60) calendar days from the date of submission.

Pricing Template and Narrative

Offerors shall submit a price quote that is fair and reasonable for the work described in the PWS. The price quote must:

- Reflect a clear understanding of the requirements.
- Be consistent with the proposed technical approach.
- Include all price necessary to perform the work as quoted.

Certifications & Representations:

This solicitation contains the following provisions that each vendor shall complete their annual representations and certifications online at www.sam.gov in the System for Award Management (SAM).

- FAR 52.204-24 – Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)
- FAR 52.212-3 – Offeror Representations and Certifications-Commercial Products and Commercial Services (Oct. 2025) (Deviation Feb 2025) Representation and Certifications.

SOLICITATION PROVISIONS: FEDERAL ACQUISITION REGULATION (FAR) AND DEPARTMENT OF THE INTERIOR ACQUISITION REGULATIONS (DIAR)

4.5 FAR PROVISIONS INCORPORATED BY REFERENCE

FAR 52.216-1 – TYPE OF CONTRACT (APR 1984)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 19 of 35
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The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far/part-52>

Clause	Title	Date
52.204-7	System for Award Management	Oct 2018
52.204-16	Commercial and Government Entity Code Reporting	Aug 2020
52.204-17	Ownership or Control of Offeror	Aug 2020
52.204-20	Predecessor of Offeror	Aug 2020
52.204-22	Alternative Line-Item Proposal	Jan 2017
52.204-9	Personal Identity Verification of Contractor Personnel	Jan 2011
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation	Nov 2015
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services	Nov 2021
52.212-3	Offeror Representations and Certifications—Commercial Products and Commercial Services	Oct 2025
52.217-5	Evaluation of Options	Jul 1990
52.224-1	Privacy Act Notification	Apr 1984
52.224-2	Privacy Act	Apr 1984
52.245-1	Government Property	Sep 2011

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)

(a) Definition.

“Internal confidentiality agreement or statement,” “subcontract”, and “subcontractor”, as used in this provision, are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.

(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 20 of 35
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permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(d) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 21 of 35
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equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction Under any Federal Law (Feb 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 24 of 35
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manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that–

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.219-1 Small Business Program Representation (Oct 2022)

a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern-

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 25 of 35
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(2) "Service-disabled veteran" means a veteran, as defined in 38 U.S.C.101(2), with a disability that is service-connected, as defined in 38 U.S.C.101(16).

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding \$750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 26 of 35
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(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) The North American Industry Classification System (NAICS) code for this acquisition is 811210 – Electronic and Precision Equipment Repair and Maintenance

(2) The small business size standard is \$34 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 27 of 35
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(3) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.

(4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(6) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.]* The offeror represents as part of its offer that

(i) It ☐ is, ☐ is not a service-disabled veteran-owned small business concern; or

(ii) It ☐ is, ☐ is not a service-disabled veteran-owned joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]* Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(8) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]* Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) *Notice.* Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 28 of 35
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owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.223-22 Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation (Dec 2016)

(a) This representation shall be completed if the Offeror received \$7.5 million or more in Federal contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(b) *Representation. [Offeror is to check applicable blocks in paragraphs (1) and (2).]*

(1) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, *i.e.*, make available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(2) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, *i.e.*, make available on a publicly available website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(3) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(c) If the Offeror checked "does" in paragraphs (b)(1) or (b)(2) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: _____.

(End of provision)

52.233-2 Service of Protest Department of the Interior (Sep 2006) (Deviation)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 29 of 35
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(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Nicole Johnson at nicole_johnson@ibc.doi.gov .

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

(End of provision)

4.3.1 DIAR PROVISIONS INCORPORATED IN FULL TEXT

1452.201-70 Authorities and delegations.

As prescribed in section 1401.670-1, insert the following clause:
Authorities and Delegations (SEP 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 30 of 35
---	--	----------------------

otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

**DIAR 1452.215-71 Use and Disclosure of Quote Information—Department of the Interior.
(APR 1984)**

Use and Disclosure of Quote Information - Department of the Interior (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in quotes include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the quote contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the quote shall be marked with the following legend:

"The information specifically identified on pages _____ of this quote constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 31 of 35
---	--	----------------------

disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the Government for any purpose other than to evaluate the quote, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the quote, the Government shall have the right to use the information to the extent provided in the contract.”

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the quote on which it appears and shall mark each such page with the following legend:

“This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this quote.”

(d) Information in a quote identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the quote, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the quote, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a quote identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a quote if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a quote not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a quote as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's quote due to clerical error.

(End of provision)

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 32 of 35
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4.3.2 AQD PROVISIONS INCORPORATED IN FULL TEXT

Evaluation of Options Provision (MAR 2022)

The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic award. To account for the possible use of the additional six-month option period(s) permitted under 52.217-8, the Government will take the price for the final (or highest priced) option period, prorated to a six-month value, and add it to the sum of the base plus all option periods. The agency's price evaluation AQD on will mathematically document the calculation of adding the six months of services for the option to extend services to the total contract price in the award summary.

This amount will be used for comparative evaluation for award purposes only. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the options. FAR 52.217-8 can be exercised at any point during the period of performance of the contract and applies to the period of performance immediately preceding exercising the option.

(End of Provision)

SECTION 5 EVALUATION OF QUOTES

52.212-2 Evaluation – Commercial Products and Commercial Services (Nov 2021)

The Government will evaluate the non-price and price quotes pursuant to the following:

5.1 GENERAL INSTRUCTIONS

Paragraphs (a) and (b) of the original clause are replaced as set forth below (5.2 – 5.4); paragraph (c) remains unchanged.

5.2 BASIS FOR AWARD

The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers: Technical and Price

The Government will evaluate quotes in accordance with FAR 13.106-3(a), considering both technical and price. Technical is significantly more important than price. Price will be evaluated, for fairness and reasonableness in accordance with Section 5.4 but will not be scored or rated. The Government may award based on initial submissions and reserves the right to request clarifications, minor corrections, or additional discounts if in the Government's best interest. Offerors should

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 33 of 35
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submit their best technical solution and price in their initial submission. The Government may reject any quote that is non-compliant or demonstrates a lack of understanding of the requirement.

Award will be made to the offeror whose quote represents the best value to the Government, even if not the lowest price, when technical advantages justify the additional cost. The Government reserves the right not to make an award if no submission provides satisfactory performance at a reasonable price or if agreement on terms cannot be reached within the timeframe established by the Contracting Officer. Responsibility will be determined in accordance with FAR Part 9.1.

5.3 VOLUME 1: TECHNICAL QUOTE

The following evaluation criteria will be utilized in order to evaluate each technical quote.

Factor 1: Technical Approach

FACTOR A: Technical

Technical Approach - The Offeror shall provide a detailed technical approach that describes how the Offeror shall provide the work requirements described in the PWS. The Offeror shall clearly demonstrate the types of reports available to the AFRH –G. Vendor must also demonstrate examples of other types of reports that are available. The Government will evaluate these criteria on the basis of the amount of information available, applicability of the information to AFRH, and the timeliness of the information.

The Offerors' written technical approach shall demonstrate the Offerors capabilities to successfully accomplish all requirements within the PWS and B08 SOL, Attachment 2 Equipment Inventory and B08 SOL, Attachment 3 AED Inventory. This includes the Offerors approach to successfully accomplish all requirements within the PWS/PRS.

5.4 VOLUME II: PRICE PROPSAL / ADMINISTRATIVE

The Price Volume will be evaluated separately from the Technical Volume in accordance with FAR 13. The Government will assess whether the price quote:

- Is fair and reasonable for the work described in the PWS.
- Reflects a clear understanding of the requirements.
- Is consistent with the proposed technical approach.
- Includes all costs necessary to perform the work as proposed.

Price will be assessed for fairness, reasonableness, and compliance with submission requirements. Prices will not be scored or rated; however, they will be considered in the best value determination in accordance with Section 5.2.

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 34 of 35
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The Government will verify that the offeror submitted B08 SOL, Attachment 1 Pricing Template in Excel format for the base year and all option years, with amounts rounded to two decimal places, and that the quotes includes a statement confirming 60-day validity.

Combined Synopsis / Solicitation 140D0426Q0234	Document Title Biomedical Engineering / Maintenance and Repair Services	Page 35 of 35
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SECTION 6

ATTACHMENTS

ATTACHMENT # TITLE

B08 SOL, Attachment 1	Pricing Template
B08 SOL, Attachment 2	Equipment Inventory
B08 SOL, Attachment 3	AED Inventory
B08 SOL, Attachment 4	Q&A Spreadsheet
B08 SOL, Attachment 5	Service Contract Act WD #: 2015-5147

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